

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3052

By: Stewart of the House

and

Frix of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to children; enacting the Sir Major
12 White-Bullock Child Protection and Family
13 Notification Act; providing findings and purpose;
14 defining terms; requiring the Department of Human
15 Services to initiate certain safety review in certain
16 circumstances; providing information the review shall
17 include; directing the Department to notify certain
18 individuals; providing exception; providing
19 information the notification shall include;
20 prohibiting the Department from withholding
21 notification; providing considerations for the
22 Department; directing the Department to establish a
23 tracking mechanism; directing hospitals and birthing
24 facilities to report certain information to the
25 Department; providing information the court shall
26 receive; permitting the court to order certain
27 evaluation or supervision; directing the Department
28 to promulgate rules; directing the Department to
29 provide training; providing for codification; and
30 providing an effective date.

31 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1-11-101 of Title 10A, unless
3 there is created a duplication in numbering, reads as follows:

4 This act shall be known and may be cited as the "Sir Major
5 White-Bullock Child Protection and Family Notification Act".

6 SECTION 2. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 1-11-102 of Title 10A, unless
8 there is created a duplication in numbering, reads as follows:

9 A. The Oklahoma Legislature finds that:

10 1. Repeated fentanyl-exposed births constitute a foreseeable
11 and preventable risk to infant safety;

12 2. Department of Human Services policies do not consistently
13 trigger enhanced intervention, cross-case review, or family
14 notification when a mother repeatedly gives birth to fentanyl-
15 positive infants;

16 3. The death of Sir Major White-Bullock, an eleven-month-old
17 child who died from fentanyl toxicity after documented repeated
18 prenatal exposure demonstrates a systemic failure, not a single
19 error; and

20 4. Stable family members are often willing and capable of
21 protecting children but are not notified due to procedural silos or
22 narrow interpretations of confidentiality.

23 B. It is the purpose of the Oklahoma Legislature to:
24

1 1. Close policy gaps that allow repeat prenatal fentanyl
2 exposure without escalated response;

3 2. Require enhanced intervention by the Department for repeat
4 fentanyl-exposed births;

5 3. Ensure qualified, stable family members are notified and
6 engaged as child welfare stakeholders;

7 4. Prioritize child safety while maintaining treatment access
8 and due process for parents; and

9 5. Enhance child safety and early intervention.

10 SECTION 3. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 1-11-103 of Title 10A, unless
12 there is created a duplication in numbering, reads as follows:

13 When used in the Sir Major White-Bullock Child Protection and
14 Family Notification Act, unless the context otherwise requires:

15 1. "Fentanyl-exposed infant" means a newborn who tests positive
16 at birth for fentanyl or whose mother tests positive for fentanyl at
17 delivery;

18 2. "Enhanced child safety review" means a mandatory, multi-
19 disciplinary response by the Department of Human Services triggered
20 by repeat prenatal fentanyl exposure;

21 3. "Qualified familial child welfare stakeholder" means a
22 grandparent, adult sibling, aunt, uncle, or other adult relative
23 who:

24 a. has no substantiated child abuse or neglect findings,

1 b. is willing to participate in safety planning or
2 placement, and

3 c. may serve as a temporary or permanent caregiver; and

4 4. "Repeat prenatal fentanyl exposure" means two or more
5 fentanyl-exposed births by the same parent within a five-year
6 period.

7 SECTION 4. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 1-11-104 of Title 10A, unless
9 there is created a duplication in numbering, reads as follows:

10 A. The Department of Human Services shall initiate an enhanced
11 child safety review when a parent has:

12 1. A second fentanyl-exposed infant; or

13 2. Any subsequent fentanyl-exposed infant.

14 B. This review shall not be discretionary and shall include:

15 1. Case history review across all prior child welfare records;

16 2. Assessment of cumulative risk, not isolated incidents; and

17 3. Review of prior service compliance and outcomes.

18 SECTION 5. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 1-11-105 of Title 10A, unless
20 there is created a duplication in numbering, reads as follows:

21 A. Upon triggering an enhanced child safety review, the
22 Department of Human Services shall identify and notify qualified
23 familial child welfare stakeholders, unless the court finds
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1 notification would pose an immediate safety risk to the child or
2 parent.

3 B. Notification shall include:

4 1. The existence of repeat prenatal fentanyl exposure; and

5 2. The opportunity to participate in:

6 a. safety planning,

7 b. temporary or kinship placement, and

8 c. case staffing or family team meetings.

9 C. The Department may not withhold notification solely on
10 confidentiality grounds when:

11 1. The child's safety is at risk due to repeat exposure; and

12 2. The notified party is being considered for placement or
13 protective involvement.

14 SECTION 6. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 1-11-106 of Title 10A, unless
16 there is created a duplication in numbering, reads as follows:

17 When repeat prenatal fentanyl exposure is identified, the
18 Department shall consider, at minimum:

19 1. Immediate safety planning prior to hospital discharge;

20 2. Supervised visitation requirements;

21 3. Kinship placement preference over foster placement;

22 4. Court-ordered substance use treatment with compliance
23 monitoring; and
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1 5. Referral to specialized maternal addiction treatment
2 programs.

3 SECTION 7. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1-11-107 of Title 10A, unless
5 there is created a duplication in numbering, reads as follows:

6 A. The Department of Human Services shall establish a repeat
7 prenatal exposure tracking mechanism that:

- 8 1. Flags repeat cases statewide; and
9 2. Prevents case isolation across counties or service regions.

10 B. Hospitals and birthing facilities shall report fentanyl-
11 positive births to the Department in accordance with paragraph 3 of
12 subsection B of Section 1-2-101 of this title.

13 SECTION 8. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 1-11-108 of Title 10A, unless
15 there is created a duplication in numbering, reads as follows:

16 A. In cases involving repeat prenatal fentanyl exposure, the
17 court shall:

- 18 1. Receive a summary of prior involvement by the Department of
19 Human Services; and

- 20 2. Be informed whether family notification occurred and why.

21 B. In cases involving repeat prenatal fentanyl exposure, the
22 court may order:

- 23 1. Immediate kinship placement evaluations; and
24 2. Expanded protective supervision.

1 SECTION 9. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1-11-109 of Title 10A, unless
3 there is created a duplication in numbering, reads as follows:

4 Nothing in this act shall:

- 5 1. Criminalize pregnancy or substance use disorder;
- 6 2. Deny access to reunification services; or
- 7 3. Eliminate parental rights without court findings.

8 SECTION 10. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 1-11-110 of Title 10A, unless
10 there is created a duplication in numbering, reads as follows:

11 The Department of Human Services shall promulgate rules within
12 one hundred eighty (180) days of enactment and shall provide
13 training to staff of the Department, hospitals, and courts.

14 SECTION 11. This act shall become effective November 1, 2026.

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16 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS AND BUDGET, dated
17 03/05/2026 - DO PASS, As Amended and Coauthored.

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